

25STCV31785 25STCV31785

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Case Number: 25STCV31785 Hearing Date: July 8, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: July

8, 2026

CASE NAME: Pro

Vision Col Roofing, Inc. v. Bobgin Vartanian, et al.

CASE NO.: 25STCV31785

DEMURRER

TO CROSS-COMPLAINT WITH MOTION TO STRIKE

MOVING PARTY: Cross-Defendants

Pro Vision Col Roofing, Inc. and Jaime Contreras

RESPONDING PARTY(S): Defendant/Cross-Complainant

Bobgin Vartanian

REQUESTED RELIEF:

1. Demurrer

to the first, second, third, fourth, fifth, sixth, seventh, eighth, ninth, and
tenth causes of action for failing to state sufficient facts and for
uncertainty;

2. Motion

to strike portions of the cross-complaint pertaining to punitive damages.

TENTATIVE RULING:

1. Demurrer

to the first, third, fourth, fifth, sixth causes of action are OVERRULED;

2. Demurrer

to the second, seventh, and tenth causes of action are SUSTAINED;

3. Demurrer

to the eighth cause of action is SUSTAINED as to Pro Vision and OVERRULED as to Contreras;

4. Demurrer

to the ninth cause of action is OVERRULED as to Pro Vision and SUSTAINED as to Contreras;

5. Motion

to strike is DENIED;

6. Leave

to amend is GRANTED except as to the tenth cause of action;

7. Plaintiff

shall file their amended cross-complaint within 21 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On October 31, 2025, Plaintiff Pro Vision Col Roofing, Inc.

(Plaintiff) against Defendants Bobgin Vartanian, individually and dba Floyd S.

Lee Fireplace & BBQ (Defendant) with five causes of action for: (1) Breach

of Contract; (2) Breach of Implied Covenant of Good Faith and Fair Dealing; (3)

Promissory Fraud; (4) Common Count: Account Stated; (5) Common Count: Goods and Services Rendered.

According to the Complaint, the parties entered into a

written agreement to re-roof Defendant's commercial property. Plaintiff alleges

that they completed the work and the City of Pasadena certified the work as properly performed. Plaintiff further alleges that the roof later leaked due to Defendant's aged internal roof drain pipe after a period of heavy rainfall. Plaintiff alleges that they made repairs even though it was outside the scope of their contractual obligations. Despite this, Plaintiff alleges that Defendant breached by failing to pay amounts due under the contract plus the emergency work.

On November 18, 2025, Defendant filed a demurrer which the court OVERRULED.

On February 18, 2026, Defendant filed an answer. That same date, he also filed a cross-complaint against Cross-Defendants Pro Vision Col Roofing, Inc. and Jaime Contreras (Cross-Defendants) with ten causes of action for: (1) breach of contract; (2) breach of implied covenant of good faith and fair dealing; (3) breach of implied warranty of merchantability; (4) breach of implied warranty of fitness for a particular purpose; (5) breach of implied warranty of workmanlike performance; (6) negligence; (7) negligent misrepresentation; (8) intentional misrepresentation; (9) concealment / fraud by omission; and (10) alter ego liability.

According to the cross-complaint, Cross-Complainant hired Pro Vision Col Roofing, Inc. to repair and replace the roof of his Pasadena property so that it would be watertight, suitable for occupancy, and protective against water intrusion, but the contractor failed to perform the work properly. He further alleges that Pro Vision and its principal, Jaime Contreras, made false or misleading representations—both by affirmative statements and by concealing material facts—about their ability and intent to deliver a watertight result. As a result of the allegedly defective work and misrepresentations, the property suffered water damage, business interruption, and other resulting losses.

On April 20, 2026, Cross-Defendants filed the instant combined demurrer with motion to strike. On June 16, 2026, Cross-Complainant filed an opposition.^[1]

Replies were due on or before June 30, 2026. As of July 2, 2026, the court has not received a reply.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc. §430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). The meet and confer requirement also applies to motions to strike. (CCP § 435.5.)

Here, the parties met and conferred via telephone on April 15, 2026. (Declaration of Bamdad Rassamdana ¶ 2.) This requirement is therefore met.

Demurrer – Sufficiency of Facts

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (Hahn 147 Cal.App.4th at 747.)

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When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) Courts also consider exhibits attached to the complaint and incorporated by reference. (See Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94 (Frantz).)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with

the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id., § 437.) “When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.” (Vaccaro v. Kaiman, (1998) 63 Cal.App.4th 761, 768.)

ANALYSIS:

Demurrer

First Cause of Action

– Breach of Contract [Pro-Vision]

Cross-Defendants contend this claim fails because it insufficiently alleges the existence of a contract and it is otherwise conclusory.

Cross-Complainant argues that they adequately plead the legal effect of the agreement and the obligations allegedly breached.

The standard elements of a claim for breach of contract are (1) the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) damage to plaintiff therefrom. (Wall Street Network, Ltd. v. New York Times Co. (2008) 164 Cal.App.4th 1171, 1178.) “A written contract may be pleaded by its terms—set out verbatim in the complaint or a copy of the contract attached to the complaint and incorporated therein by reference—or by its legal effect.” (McKell v. Washington Mutual, Inc. (2006) 142 Cal.App.4th 1457, 1489.) To plead a contract by its legal effect, a plaintiff must “allege the substance of its relevant terms. This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions.” (Ibid.)

After reviewing the cross-complaint, Cross-Complainant has sufficiently stated a claim for breach of contract. Notably, they alleged the contract by its legal effect. First, they provide that Cross-Complainant and Cross-Defendant Pro-Vision entered into the contract on or about October 19, 2024. (Cross-Compl. ¶ 7.) Next, he sets out the terms: roofing repair/replacement and accompanying water intrusion prevention system “conducted in a “workmanlike matter to ensure the Property was watertight, free of any leaks

or means of water intrusion, in a condition to allow Cross-Complainant to occupy the Property, in a condition to insulate and protect the interior from water damage, and suitable for Cross-Complainant's intended use and business." (Cross-Compl. ¶¶ 7-8.) This sufficiently sets out the substance of the relevant terms. Second, Cross-Complainant alleges Cross-Defendant's breach by "failing to properly repair and replace the roof," "failing to ensure the Property was free of any leaks or means of water intrusion," "failing to deliver the roof and Property in a condition which was free of leaks or means of water intrusion and suitable for [sic] allow Cross-Complainant to occupy the Property and conduct business," and "otherwise failing to deliver [the] Property in a manner in accordance with the terms of the Agreement" (Cross-Compl. ¶ 9.) Third, Cross-Complainant alleges his performance in making payments. (Cross-Compl. ¶ 10.) Finally, Cross-Complainant alleges resulting damages. (Cross-Compl. ¶ 11.) This is sufficient for the pleadings stage.

Accordingly, the court **OVERRULES** Cross-Defendant's demurrer to the first cause of action.

Second Cause of Action

– Breach of Implied Covenant of Good Faith and Fair Dealing [Pro-Vision]

Cross-Defendants contend this claim fails because it is the same as the breach of contract claim.

Cross-Complainant argues that they are allowed to plead alternative theories of recovery.

Every contract contains an implied covenant of good faith and fair dealing that neither party will do anything to interfere with the other party's right to receive the benefits of the agreement. (Howard v. American Nat'l Fire Ins. Co. (2010) 187 Cal.App.4th 498, 528.)

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The elements of a claim for breach of implied covenant of good faith and fair dealing are: (1) the existence of a contractual relationship; (2) an implied duty; (3) breach; and (4) causation of damages.

(See, e.g., Smith v. City and County of

San Francisco (1990) 225 Cal.App.3d 38, 49; Careau & Co. v. Security Pacific Business Credit, Inc. (1990) 222 Cal.App.3d 1371, 1395 ["allegations which assert such a claim must show

that the conduct of the defendant...demonstrates a failure or refusal to discharge contractual responsibilities, prompted ... by a conscious and deliberate act, which unfairly frustrates the agreed common purposes and disappoints the reasonable expectations of the other party thereby depriving that party of the benefits of the agreement. Just what conduct will meet this criteria must be determined on a case by case basis...."].)

"If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated." (Careau, supra, 222 Cal.App.3d at p. 1395.) Additionally, a plaintiff must allege a "special relationship" between the parties that warrants imposing tort damages for, what is essentially, breach of contract. (Id. at p. 1398-1400.)

Here, Cross-Complainant insufficiently stated a claim for breach of the implied warranty of good faith and fair dealing. Critically, it is based on the same conduct as the breach of contract claim. (Cross-Compl. ¶ 14.) Thus, it is superfluous.

Accordingly, the court SUSTAINS Cross-Defendant's demurrer to the second cause of action.

Third Cause of Action

– Breach of Implied Warranty of Merchantability [Pro-Vision]

Cross-Defendants contend this claim fails because it does not apply to a services contract.

Cross-Complainant argues that whether the transaction is ultimately characterized as predominantly a sale of goods or predominantly services is a fact question inappropriate for the demurrer stage.

A "warranty that the goods shall be merchantable is implied in a contract for their sale if the seller is a merchant with respect to goods of that kind." (Comm. Code § 2314(1).) "Goods to be merchantable must be at least such as: ¶ (a) Pass without objection in the trade under the contract description; and ¶ (b) In the case of fungible goods, are of fair

average quality within the description; and ¶ (c) Are fit for the ordinary purposes for which such goods are used; and ¶ (d) Run, within the variations permitted by the agreement, of even kind, quality and quantity within each unit and among all units involved; and ¶ (e) Are adequately contained, packaged, and labeled as the agreement may require; and ¶ (f) Conform to the promises or affirmations of fact made on the container or label if any.” (Id. at subd. (2).)

“Accordingly, to breach the implied warranty, a product must lack even the most basic degree of fitness for ordinary use.” (Beasley v. Tootsie Roll Industries, Inc. (2022) 85 Cal.App.5th 901, 924 [internal quotation marks omitted].)

This section of the Commercial Code applies to the sales of goods and, if the sale of goods aspects do not predominate, only to provisions which relate primarily to the sale of goods aspects of the transaction. (Comm. Code § 2102(a), (b).)

“The test for inclusion or exclusion is not whether [goods and services] are mixed, but, granting that they are mixed, whether their predominant factor, their thrust, their purpose, reasonably stated, is the rendition of service, with goods incidentally involved (e.g., contract with artist for painting) or is a transaction of sale, with labor incidentally involved (e.g., installation of a water heater in a bathroom).” (C(Ventures v. SVC-West, L.P. (2012) 202 Cal.App.4th 1483, 1494.)

Here, Cross-Complainant sufficiently states a claim to survive the pleading stage. Notably, Cross-Complainant has alleged a hybrid contract for roofing and waterproofing materials to be installed. (Cross-Compl. ¶¶ 17-18.) Cross-Defendants provided no California authority indicating it is appropriate for the court to determine the scope of a hybrid contract at the pleadings stage.

Accordingly, the court **OVERRULES** Cross-Defendant’s demurrer to the third cause of action.

Fourth Cause of Action

– Breach of Implied Warranty of Fitness for a Particular Purpose [Pro-Vision]

Same arguments as the third cause of action.

For the same reasons articulated in the third cause of action, the court OVERRULES the demurrer to the fourth cause of action.

Fifth Cause of Action

– Breach of Implied Warranty of Workmanlike Performance [Pro-Vision]

Same arguments as the third cause of action.

For the same reasons articulated in the third cause of action, the court OVERRULES the demurrer to the fifth cause of action.

Sixth Cause of Action

– Negligence [Pro-Vision]

Cross-Defendants contend this claim is barred by the economic loss rule.

Cross-Complainant argues that they alleged property damages in addition to failure to perform as expected. They add the claim is also based on Cross-Defendant's failure, as experts in their field, to exercise reasonable care in inspecting, diagnosing, designing, recommending, supervising, and performing the roofing work.

A claim for negligence requires: (1) a legal duty owed to plaintiffs to use due care; (2) breach of that duty; (3) causation; and (4) damages. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 318.)

"[N]egligent performance of a construction contract, without more, [does not] justify an award of tort damages." (*Erich v. Menezes* (1999) Cal.4th 543, 551, 550-554.) Recovery for negligence has since been expanded to include construction defects that cause property damage. (*Aas v. Superior Court of San Diego* (2000) 24 Cal.4th 627, 637 [superseded by statute on other grounds.]) Property damage does not include mere economic loss, such as repair and replacement costs. (*Id.* at p. 635-636.) The same conduct alleged in a contractual claim may be alleged to constitute a negligence claim so long as the conduct also violates a tortious duty. (*Erich, supra*, Cal.4th at p. 551.)

"[T]he economic loss rule allows a plaintiff to recover in ... tort when a product defect causes damage to 'other property,' that is, property other than

the product itself.” (Robinson Helicopter Co. v. Dana Corp. (2004) 34 Cal.4th 979, 989.)

Here, Cross-Complainant sufficiently stated their negligence claim. The only issue is whether it is barred by the economic loss rule. At this stage, it is not. Specifically, Cross-Complainant alleged separate property damage from water intrusion due to the alleged negligent roof repair and replacement. (Cross-Compl. ¶¶ 32-33.) This is enough to survive the pleadings stage.

Accordingly, the court **OVERRULES** Cross-Defendant’s demurrer to the sixth cause of action.

Seventh Cause of Action – Negligent Misrepresentation [Pro-Vision & Contreras]

Cross-Defendants contend this claim fails because it is based on a promise of future conduct or contract performance.

Cross-Complainant argues that Cross-Defendants ignore the allegations of the cross-complaint and otherwise raise inappropriate factual challenges.

“The essential elements of a count for intentional misrepresentation are (1) a misrepresentation, (2) knowledge of falsity, (3) intent to induce reliance, (4) actual and justifiable reliance, and (5) resulting damage. [Citation.] (Chapman v. Skype, Inc. (2013) 220 Cal.App.4th 217, 230-31.) “ ‘ “The elements of negligent misrepresentation are similar to intentional fraud except for the requirement of scienter; in a claim for negligent misrepresentation, the plaintiff need not allege that the defendant made an intentionally false statement, but simply one as to which he or she lacked any reasonable ground for believing the statement to be true.” [Citations.] [Citation.]’ ” (Bains v. Moores (2009) 172 Cal.App.4th 445, 454.) “Causes of action for intentional and negligent misrepresentation sound in fraud and, therefore, each element must be pleaded with specificity. [Citations.]” (Daniels v. Select Portfolio Servicing, Inc. (2016) 246 Cal.App.4th 1150, 1166, disapproved of on other grounds by Sheen v. Wells Fargo Bank, N.A. (2022) 12 Cal.5th 905.)”

A cause of action for fraud must be alleged with specificity such that Plaintiff pleads facts that "show how, when, where, to whom, and by what means the representations were tendered." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) Similarly, "[t]he requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (Tarmann v. State Farm Mutual Automobile Insurance Co. (1991) 2 Cal.App.4th 153, 157.)٤٤

"A representation generally is not actionable unless it is about 'past or existing facts.'" (Stockton Mortgage, Inc. v. Tope (2014) 233 Cal.App.4th 437, 458.) "Although a false promise to perform in the future can support an intentional misrepresentation claim, it does not support a claim for negligent misrepresentation." (Ibid.)

After reviewing the cross-complaint, Cross-Complainant has insufficiently stated a claim for negligent misrepresentation. First, they did not articulate who spoke on behalf of Pro-Vision. (Tarmann, supra, 2 Cal.App.4th at p. 157.) Second, the alleged misrepresentations concern future performance of work which, under Stockton Mortgage, does not support a negligent misrepresentation claim. (Cross-Compl. ¶¶ 35-36.)

Accordingly, the court SUSTAINS Cross-Defendants' demurrer to the seventh cause of action.

Eighth Cause of Action

– Intentional Misrepresentation

Cross-Defendants contend this claim fails because it insufficiently plead facts showing intent to defraud at the time of the statements as well as the actual misrepresentation.

Cross-Complainant argues that they alleged detailed allegations regarding professional representations, concealed conditions, specialized expertise, reliance, and resulting damages (more than Plaintiff plead and survived on demurrer). They add that

See above for the claim's elements.

Here, Cross-Complainant sufficiently stated a claim, in part. First, the same issue pertains to Pro-Vision regarding identity of the corporate speaker. As to Contreras, Cross-Complainant sufficiently stated intent to defraud at the time of the promise. (Beckwith v. Dahl, (2012) 205 Cal.App.4th 1039, 1060.) They allege the true intention was to induce Cross-Complaint to enter the agreement, pay large sums of money, without providing a watertight result and deeming the project complete despite this. (Cross-Compl. ¶¶ 50-51.)

Accordingly, the court SUSTAINS the demurrer as to Pro-Vision and OVERRULES the demurrer as to Contreras.

Ninth Cause of Action

– Concealment / Fraud by Omission

Cross-Defendants contend this claim fails because they failed to plead a special or fiduciary relationship requiring disclosure.

Cross-Complainant argues that they alleged a duty to disclose based on exclusive knowledge concerning the drainage-related conditions and their effect upon the roofing system's performance, among other reasons. They add the claims are specifically plead.

The elements for an action for fraud based on concealment are: "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage." (Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC (2008) 162 Cal.App.4th 858, 868 [internal quotations and citations omitted].) "Suppression of a material fact is actionable when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship." (Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 843 (Dhital) [citing Hoffman v. 162 North Wolfe LLC (2014) 228 Cal.App.4th 1178, 1186-1187].)¿¿

Concealment claims require the same specificity standard as fraud claims, but the requirement to plead how, when, where, to whom, and by

what means misrepresentations were communicated do not apply to concealment. (*Alfaro v. Community Housing Improvement*

System & Planning Assn., Inc. (2009) 171 Cal.App.4th 1356, 1384 ["How does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?"].) Rather, if a party alleges that a defendant's duty to disclose arose by the virtue of their relationship or defendant's exclusive knowledge or access to certain facts, "the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission." (*Rattagan v. Uber Technologies* (2024) 17 Cal.5th 1, 43-44.)

Here, Cross-Complainant sufficiently alleged this claim, in part. As to Pro-Vision, Cross-Coplainant alleged a duty to disclose to material facts via their direct contractual relationship. (Cross-Compl. ¶ 56.) This is enough for the pleadings stage. However, there are insufficient facts showing that Contreras had a duty to disclose.

Accordingly, the court **OVERRULES** the demurrer as to Pro-Vision and **SUSTAINS** the demurrer as to Contreras.

Tenth Cause of Action

– Alter Ego Liability

Cross-Defendants contend this claim fails because it is all conclusions based on information and belief.

Cross-Complainant argues that Cross-Defendants ultimately possess this information.

A plaintiff need only allege ultimate facts to plead alter ego and survive demurrer. (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 236.) Additionally, "less particularity . . . is required where the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff." (*Id.* at p.

236.) However, "[a] claim against a defendant, based on the alter ego theory, is not itself a claim for substantive relief" (*Hennessy's Tavern, Inc. v. American Air*

Filter Co. (1988) 204 Cal.App.3d 1351, 1359.)

Here, the court agrees that alter ego liability is not a standalone cause of action. (Hennessy's Tavern, Inc., supra, 204 Cal.App.3d at p. 1359.)

Accordingly, the court SUSTAINS Cross-Defendants' demurrer to the tenth cause of action.

Motion to Strike

Cross-Defendants claim punitive damages are barred by the economic loss rule and Cross-Complainant failed to allege despicable conduct giving rise to punitive damages.

Cross-Complainant argues they sufficiently stated a claim for punitive damages.

To obtain punitive damages, a plaintiff must plead sufficient facts in support of punitive damages. (See Hilliard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-92.) In addition, punitive damages are allowed only where "it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code, § 3294(a).) Courts have viewed despicable conduct as conduct "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. (Scott v. Phoenix Schools, Inc., (2009) 175 Cal.App.4th 702, 715.) Further, Civil Code § 3294(c) provides the definition of malice, oppression, and fraud. Malice is "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Ibid.) Oppression is "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Ibid.) Fraud is "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Ibid.)

Here, Cross-Complainant sufficiently stated a claim for punitive damages. Notably, at least one of their fraud claims survive at this point.

Accordingly, the court DENIES the motion to strike.

Leave to Amend

Leave to amend should be liberally granted if there is a reasonable possibility an amendment could cure the defect. *¿* (County of Santa Clara v. Superior Court (2022) 77 Cal.App.5th 1018,1035.) *¿* The Plaintiff has the burden of demonstrating that leave to amend should be granted, and that the defects can be cured by amendment. (“Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349).

Here, leave to amend is warranted, in part. Notably, the aforementioned defects are capable of curing except for the tenth cause of action since alter ego will never be a standalone cause of action. Cross-Complainant can otherwise plead alter ego liability.

Accordingly, the court GRANTS Cross-Complainant leave to amend except as to the tenth cause of action.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Demurrer

to the first, third, fourth, fifth, sixth causes of action are OVERRULED;

2. Demurrer

to the second, seventh, and tenth causes of action are SUSTAINED;

3. Demurrer

to the eighth cause of action is SUSTAINED as to Pro Vision and OVERRULED as to Contreras;

4. Demurrer

to the ninth cause of action is OVERRULED as to Pro Vision and SUSTAINED as to Contreras;

5. Motion

to strike is DENIED;

6. Leave

to amend is GRANTED except as to the tenth cause of action;

7. Plaintiff

shall file their amended cross-complaint within 21 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 8, 2026 _____ Upinder

S. Kalra

Judge

of the Superior Court

[1]

The opposition lacks citation to legal authority which is akin to no response. “[C]ontentions are waived when a party fails to support them with reasoned argument and citations to authority.” (Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215.)